

Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

W.P. No.27555 of 2023

M/s NC Entertainment (Pvt.) Ltd. & another

Versus

Central Board of Film Censors (CBFC), etc.

J U D G M E N T

Date of Hearing	21.06.2023, 22.06.2023, 23.06.2023, 04.06.2024 and 08.04.2025.
For the petitioners	M/s Muhammad Ali Raza, Habiba Alvi, Jawad Ul Hassan and Raza Ahmad, Advocates.
For the Federation of Pakistan	Mr. Muhammad Mansoor Ali Sial, Assistant Attorney General.
For the Province of Punjab	Mr. Amar Sana, Additional Advocate General and Mr. Muhammad Osman Khan, Assistant Advocate General.
For respondent No.2 /PEMRA	Syed Nayyer Abbas Rizvi, Advocate with Umer Khatab, Deputy Director Legal, PEMRA.
For respondent No.3/PTA	Barrister Ch. Muhammad Umar and Mufti Ahtesham-ud-din Haider, Advocates.
<i>Amicus Curiae</i>	Mr. Zeeshan Zafar Hashmi, Advocate.

Raheel Kamran J:- This judgment shall decide the titled petition as well as Writ Petition No.27810 of 2023 since common questions of law and facts are involved therein.

2. The petitioners are entertainment broadcasting companies having a chain of cinemas across Pakistan and are duly licensed to exhibit films by way of cinematograph. They are aggrieved by the alleged discriminatory act of the respondents over enforcement of certification, censorship and other restrictions for public exhibition

of films only. In order to have precise picture of their grievance, the prayer made in the titled constitutional petition is reproduced hereunder: -

“WHEREFORE, it is respectfully prayed that this Honourable Court may be pleased to direct that the provisions of the Motion Pictures Ordinance 1979 and the Rules framed thereunder apply equally to all film content whether for public and private exhibition or viewing and distributed, broadcast or exhibited through any forum, media or method and alternatively if any film content is available in Pakistan through any medium for public or private access and has not been restrained by the Respondent No.1 the said content be deemed certified for use by the Petitioners. It is further prayed that this Honourable Court may be pleased to direct that the digital content accessed digitally by the Petitioners not being an import of goods is not subject to the Import Policy Order 2022 and Serial No.24 particularly. It is further prayed that this Honourable Court may be pleased to direct the Respondents No.1 to No.5 to act without discrimination and act immediately in respect of all mediums of private and public exhibition displaying films by cinematograph and in collaboration with the Respondents No.2 and 3 to properly regulate the private exhibition of films on cable TV and the internet-enabled platforms by strictly enforcing the provisions of the Ordinance of 1979 and the rules made thereunder.”

The connected Writ Petition No.27810 of 2023 seeks identical relief.

3. Learned counsel for the petitioners contends that all films broadcast on the distribution networks under regulation of Pakistan Electronic Media Regulatory Authority (PEMRA) are required to be approved by the Board constituted under section 3 of the Motion Pictures Ordinance, 1979 (‘the Ordinance’) and in terms of section 4 *ibid*, any broadcast of films without certification as required under section 5 is without lawful authority. According to him, Rule 15(2) of the Pakistan Electronic Media Regulatory Authority Rules, 2009 (‘‘PEMRA Rules’’) imposes obligatory requirement upon all cable and television licencees to comply with the requirements under section 4(1) & 5 of the Ordinance and allowing such exhibition by PEMRA is discriminatory against cinema theaters. He maintains that cinematograph has been defined in section 2(c) of the Ordinance which is to include any apparatus for the reproduction of moving

pictures or series of pictures and it has a similar definition under the Indian Cinematograph Act, 1952 and the Madras High Court in India in the case of Entertaining Enterprises v. State of Tamil Nadu and Anr (**AIR 1984 Mad 278**) has given the word an enlarged definition taking into account the modern innovation and advancement in science and technology. He adds that guiding principles for censorship in certifying films under section 6 of the Ordinance are derived from the reasonable restrictions imposed by the law on the freedom of expression under Article 19 of the Constitution, hence, these considerations cannot be applied selectively and must be applied to all viewing platforms as envisaged by the Constitution inasmuch as the intent and purpose of censorship law is to ensure social norms of decency and morality prevailing in Pakistani society. Reliance in this regard has been placed on the judgment of Supreme Court of Pakistan dated 24.11.2022 in Civil Petition No.3506 of 2020. According to him, provisions of the Ordinance have not been enforced equally against all mediums and platforms of public and private exhibition and the same are being applied selectively and arbitrarily against the petitioners leaving all other digital platforms to continue unchecked, which is discriminatory application of the law and such selected application is a manifest violation of the principle of equality of all citizens enshrined in Article 25 of the Constitution of the Islamic Republic of Pakistan, 1973 ('the Constitution'). Reliance has been placed on the case of Messrs Lucky Cement v. Khyber Pakhtunkhwa and others (**2022 SCMR 1994**). He further contends that Item No.24 in the list of banned items in the Import Policy Order, 2022 dated 22.04.2022 ('Import Policy') issued by the Ministry of Commerce, Government of Pakistan is *ultra vires* section 3 of the Import and Export (Control) Act, 1950 as well as Articles 19 & 19A of the Constitution. According to him, petitioners are required to obtain import permissions for all foreign films it seeks to exhibit in addition to censorship by the Board by way of a prior grant of NOC, whereas cable television, broadcast television or

internet providers or international digital content platforms do not obtain any such permission for the digital content including films which are available to be accessed in Pakistan. Learned counsel for the petitioners in support of his arguments has also relied upon paragraph No.6 of report and parawise comments of respondent No.1.

4. Learned Law Officer for the Federation contends that these writ petitions are not maintainable inasmuch as the petitioners therein are not aggrieved and none of their established rights has been restricted or hindered by any of the respondents. He maintains that the alleged violation of Articles 18, 19 and 19A of the Constitution vide item No.24 in the Import Policy is misconceived inasmuch as the said fundamental rights are subject to qualifications specified therein. He adds that following the 18th Constitutional Amendment Act, 2010, which amended the 4th Schedule, the subject of cinematograph censorship devolved upon the provinces, granting them exclusive authority in this regard. He further contends that the term ‘cinematograph’ shall be construed keeping in view the context of the Ordinance and OTT Platforms are not covered by it. He finally contends that challenge of the petitioners is unsustainable in view of the findings of the Supreme Court of Pakistan as recorded in paragraph 65 in the case of Lahore Development Authority through D.G. and others v. Ms. Imrana Tiwana and others (2015 SCMR 1739).

5. Learned Law Officers for the province state that report and para-wise comments have been filed on behalf of respondents No.6 and 7 in W.P.No.27810 of 2023 wherein it has been stated that the PEMRA exclusively deals with electronic media and that the jurisdiction of the Punjab Film Censor Board is only restricted to censorship of films. They have also emphasized that the term ‘cinematograph’ is to be construed in the context of the Ordinance which has no application to the OTT platforms. They have prayed for dismissal of the titled writ petitions on the ground that no fundamental right is violated and the petitioners want to promote

their personal business through the instant petitions which are liable to be dismissed.

6. Learned counsel for the respondent/PEMRA contends that the PEMRA is a regulatory authority for the purpose of broadcasting media and distribution of services and it is responsible only for improving the quality standards of the channels shown to the people of Pakistan. He further contends that the PEMRA has no nexus with the Ordinance and the petitioners have neither any *locus standi* nor any grievance against it.

7. Barrister Ch. Muhammad Umar, learned counsel for the respondent/PTA contends that the PTA has no mandate or jurisdiction under the Pakistan Telecommunication (Re-Organization) Act, 1996 ('PTA Act') to regulate matters pertaining to content that is available for viewership on OTT platforms. He adds that the PTA Act authorizes the said respondent to regulate telecommunication sector and internet service and under the Prevention of Electronic Crimes Act, 2016 ("PECA Act") they have been conferred with authority to block any content which is deemed unlawful under section 37 *ibid*. He submits that the PTA does have authority to block access to the OTT platforms and in this regard he has referred to rule 5(6) of the Removal and Blocking of Unlawful Online Content (Procedure, Oversight and Safeguards) Rules, 2021. He, however, emphasizes that because of lack of technical capability, PTA may not be able to control content under the said rule in relation to "https" or other similar protocols for which purpose the only approach available with the PTA is to completely block the content in the country. In such cases, he clarifies, the authority takes up complaints with the provider of the content which are considered more often by the administration of the concerned protocol. He further submits that service providers and significant social media companies have been asked by the PTA to establish their offices in Pakistan, as and when feasible, with a physical address, preferably located in Islamabad in terms of rule 7 (6)(d) of

the 2021 Rules. In case of non-adherence to the directive of the authority, all that PTA can do is to restrict or block access to such platforms through a proper order in the facts and circumstances of the case. According to him, censorship is primary mandate of Censor Board and PEMRA and it is not at all domain of the PTA and if any such regulation is to be made, the same has to be carried out through an act of the Parliament.

8. Mr. Zeeshan Zafar Hashmi, learned *amicus curiae*, contends that the Ordinance essentially deals with exhibition of films by means of cinematograph which is controlled by the Censor Board through censorship. He adds that it is significant to understand the meanings of words “film”, “cinematograph” and “exhibition”, out of which film and cinematograph are defined in sections 2(d) and 2(c) respectively of the Ordinance whereas the word exhibition is not defined therein. According to him, the word cinematograph has lost its efficacy on account of technological advancement. He further adds that the law requires those definitions to be adhered to in the context in which those were enacted at the time of promulgation of the Ordinance. He has placed reliance on the judgment in the case of Supreme Court Bar Association of Pakistan through President and another v. Federation of Pakistan through Ministry of Interior Islamabad and others (PLD 2023 SC 42). According to him, the expression cinematograph has to be taken in the way it was defined in 1979-80 in the times of cinema and VCRs. He contends that the medium of OTT was not existing at the time when the Ordinance was promulgated, therefore, the Ordinance has no application to regulate the same. He next referred to the Judgment of House of Lords in the case of British Amusement Catering Trades Association and another v. Westminster City Council [1988] 1 All E R). According to him, the definition in the Ordinance is not inclusive of OTT.

9. Arguments heard. Record perused.

10. The present petitions seek manifold directions concerning the regulation of Over-the-Top (OTT) platforms and their content,

particularly in light of existing legislation governing traditional cinematic exhibition. This Court has meticulously examined each prayer, the underlying legal framework and the practical realities of the digital media landscape, drawing insights from global regulatory approaches and the on-going discourse on content governance.

11. The Motion Pictures Ordinance was enacted in 1979, a pre-digital era, designed primarily to regulate the exhibition of films via cinematographs in public spaces, involving a process of pre-censorship and certification by a censor board. To provide a comprehensive understanding, it is necessary to first examine the preamble and key definitions in the Ordinance.

***Preamble.**--Whereas it is expedient to provide for the censorship of films and the regulation of exhibition of films by means of cinematographs, and for matters connected therewith or incidental thereto;*

***2. Definitions.** – In this Ordinance, unless there is anything repugnant in the subject or context-*

(a) - - - - -

(b) - - - - -

(c) “cinematograph” includes any apparatus for the reproduction of moving pictures or series of pictures;

(d) “film” means cinematographic film or other materials used for projection by cinematograph;

(e) “place” includes a house, building, tent and any means of transport, whether by sea, land or air;

Perusal of the preamble shows that the Ordinance was promulgated to provide for:-

- (i) censorship of films
- (ii) regulations of exhibition of films by means of cinematograph, and
- (iii) for matters connected therewith or ancillary thereto

This legal framework in the Ordinance contemplates a physical medium, a controlled environment of public exhibition and a limited volume of content, amenable to manual pre-screening. Content on OTT platforms was not within the purview of the Ordinance for the simple reason that OTT platforms had not been invented at the time Ordinance was promulgated. Although the subject of cinematograph

censorship devolved upon the provinces through the 18th Constitutional Amendment Act, 2010 (amending the 4th Schedule) and the provincial governments accordingly amended the Ordinance respectively, by way of (i) The Sindh Motion Pictures Act, 2011 (IV of 2012) (ii) The Punjab Motion Pictures (Amendment) Act, 2012 (X of 2013) (iii) The Khyber Pakhtunkhwa Censorship of Motion Pictures (Films, CDs, Videos, Stage Dramas and Shows) Act, 2018 (XI of 2018), however, no clause for pre-screen censorship of the content available on OTT platforms or any other digital medium was incorporated into these Acts despite the fact that many of the OTT platforms had emerged in the mid-to-late 2000s i.e. prior to amendment of the Ordinance by the provinces. Had it been the intention of the legislature to bring OTT platforms within the purview of the Motion Pictures Ordinance/Acts, there would have been clear indication of the legislature while amending the Ordinance by way of afore-referred Acts.

12. In stark contrast, OTT platforms, such as Netflix, Amazon Prime Video and others operate on an entirely different paradigm. They deliver Over-the-Top content directly to end-users via the internet, accessible on various personal devices (smartphones, tablets, smart TVs) in private settings, on-demand, at any time. The sheer volume of content available on these platforms, often encompassing millions of hours, with new content uploaded continuously, renders traditional pre-censorship logistically impossible and economically unviable for any human-led censorship board. Furthermore, OTT platforms inherently possess a global nature. Content originating in one country is streamed worldwide, making it operationally unfeasible to subject every piece of content to pre-screening requirements of every jurisdiction into which it is streamed. Many platforms also host vast amounts of user-generated content, which is even more challenging to pre-screen censorship. The assertions raised by the learned counsel for respondent No.3/PTA further underscore the practical and technical

impossibilities of applying a pre-screen censorship regime to OTT platforms. Section 37(1) of the Prevention of Electronic Crimes Act, 2016 (PECA, 2016) empowers the Pakistan Telecommunication Authority (PTA) to block or remove unlawful online content deemed to be against the glory of Islam, State's integrity, security, or defense; indecent or constituting contempt of court. For the facility of ready reference, section 37(1) *ibid* is reproduced hereunder: -

“37. Unlawful On-line content. – (a) *The Authority shall have the power to remove or block or issue directions for removal or blocking of access to an information through any information system if it considers it necessary in the interest of the glory of Islam or the integrity, security or defence of Pakistan or any part thereof, public order, decency or morality, or in relation to contempt of Court or commission of or incitement to an offence under this Act.”*

Procedure for filing, processing and disposal of complaints with regard to online content has been provided in Chapter III of the Removal and Blocking of Unlawful Online Content (Procedure, Oversight and Safeguards) Rules, 2021. Relevant sections 4 and 5 of the said Chapter are reproduced for comprehensive understanding: -

“4. Filing of complaints. – (1) *the Authority shall entertain complaints with regard to an Online Content. A complaint for blocking or removal of Online Content may be filed by: --*

(i) any Person, or his guardian, where such Person is a minor, aggrieved by online Content: or

(ii) a Ministry, Division, attached department, subordinate office, provincial or local department or office, a law enforcement or intelligence agency of the Government, or a company owned or controlled by the Government.

(2) The Complainant mentioned under clause (i) of sub-rule (1) above, may lodge a complaint against any Online Content to the Authority through the Form specified in the Schedule, which may be amended from time to time:

Provided that where a Complainant is unable to lodge a complaint through the Form specified in the Schedule, the Complainant may use any other appropriate means in writing to lodge the complaint to the Authority while making full disclosure of available information regarding the complaint and the Complainant:

Provided further that the Authority may seek any further information or clarification from the Complainant for an appropriate decision on the complaint.

(3) The complaint under clause (ii) of sub-rule (1) above shall be made only by authorized representative through a web-based mechanism developed by the Authority for this purpose to clearly elaborate the Online Content complained of, its location on the internet and reasons for its removal or blocking access to such Online Content.

(4) The Authority shall register the said complaint through the allocation of unique complaint number to be communicated to the Complainant.

(5) The Authority shall ensure that the Online Content and the identity of the Complainant is kept confidential, if the sharing of such Online Content or the identity of the Complainant with others may result in proliferation of the Online Content or harming, harassing or defaming the Complainant, or invasive of the Complainant's privacy or relates to the modesty of the Complainant.

(6) Notwithstanding the provisions of these rules, the Authority may on its own motion take cognizance of any. Online Content and exercise its powers under section 37(1) of the Act for removal or blocking of such Online Content.

5. Disposal of complaint.-(1) *Subject to the provisions of these rules, a complaint filed under rule 4 above, shall be decided by the Authority within thirty (30) days.*

(2) The Authority, subject to the provisions of the Act and these rules, shall pass order in writing by recording reasons for its decision to whether or not to remove or block the Online Content after affording opportunity of being heard the Person against whom the complaint has been filed and any other person who in the opinion of the Authority is likely to be adversely affected by such order: to Provided that the Authority shall give 48 hours' time to the Service Provider, Social Media Company, Significant Social Media Company or User, as the case may be, to comply with the directions of the Authority for removal or blocking access to an Online Content: Provided further that in case of Emergency, the Authority may direct the Service Provider, Social Media Company, Significant Social Media Company or User, as the case may be, to remove or block access to an Online Content within 12 hours instead of 48 hours from the time of the receiving of the directions: Provided further that the Authority shall specify the reasons for the Emergency in writing.

(3) Directions by the Authority under sub-rule (2) shall meet following requirements:

(i) It shall be in writing or through email by the authorized division/officer of the Authority;

(ii) Identification of the content at issue by URL or other unique identifier and, if applicable, identification of the timestamp for the content at issue; and

(iii) Grounds and reasons including provisions of the applicable local laws for the directions.

(4) The Authority while issuing directions for removal or blocking access to an Online Content may direct the Service Provider, Social Media Company, Significant Social Media Company or User to secure such Information including traffic data, as the case may be, for evidentiary purposes only and for such period of time as the Authority may deem appropriate.

(5) The Authority may, in consultation with the investigation agency, defer action not beyond one month, on a complaint in the interest of helping criminal investigation of the matter: Provided that action or directions on a complaint relating to modesty of a natural person shall not be deferred by the Authority without consent of the Complainant.

(6) The blocking or removal of an Online Content hosted on an Online Information System, websites/web servers offering Https or similar protocols shall be undertaken by the Authority on a best effort basis.

(7) In case the Service Provider, Social Media Company or Significant Social Media Company, as the case may be, fails to remove or block access to Online Content or to comply with the directions issued by the Authority under sub-rule (2) within the specified time, the Authority may initiate action as per following procedure:-

(i) serve a written notice requiring the Service Provider, Social Media Company or Significant Social Media Company to remedy the contravention and give a written explanation within 48 hours to the satisfaction of the Authority for non-compliance with directions of the Authority:

Provided that subject to the fulfillment of requirements under rule 7(5) of these rules, all notices, directions, and orders shall be served on and addressed to the authorized compliance officer or head office of the Service Provider, Social Media Company or Significant Social Media Company.

(ii) where the Service Provider, Social Media Company or Significant Social Media Company fails to respond to the notice or satisfy the Authority in respect of the alleged contravention as referred to in sub-clause (i), the Authority may after affording an opportunity of hearing and by order in writing take any of the following actions:-

(a) degrade the services of such Service Provider or Social Media Company or Significant Social Media

Company for such period of time as deemed appropriate by the Authority; or

(b) [PART II block or issue directions for blocking of the entire Online Information System; or

(c) impose a penalty up to rupees five hundred million:

Provided that action under clause (ii) of sub-rule (7) above, shall be taken upon intentional failure on part of the Service Provider, Social Media Company or Significant Social Media Company to comply with the directions of the Authority:

Provided further that notwithstanding anything contained under clause (ii) of sub-rule (7), the Authority shall block Online Information System in compliance with the directions of the court or on the written directions of the Federal Government or Ministry of Interior, as the case may be, issued under any other law for the time being in force.

(8) The Authority may seek an expert opinion from any person(s) wherever it deems appropriate regarding any Online Content.”

The above procedure primarily addresses online content based on complaints, however, Section 4(6) of the Rules also allows the authority to act on its own initiative to remove or block unlawful online content under Section 37(1) of the Act, even without a formal complaint. While acknowledging the PTA’s statutory authority to block access to unlawful online content under Section 37(1) of the Prevention of Electronic Crimes Act, 2016 and Rule 5(6) of the Removal and Blocking of Unlawful Online Content (Procedure, Oversight and Safeguards) Rules, 2021, there is a critical distinction. Though a platform might be blocked entirely, the granular, pre-screening censorship of individual content items, as is done for traditional films to be exhibited through cinematograph, is not practically achievable due to the encrypted nature and sheer volume of data streaming over such protocols. The authority’s recourse in such scenarios is often limited to a complete blocking of the platform or engaging with content providers, rather than undertaking a proactive, content-by-content review. This technical reality is not unique to Pakistan but is a globally recognized challenge in the digital realm. The overwhelming majority of countries have moved

away from blanket pre-censorship models for OTT content precisely because of its logistical and technological impracticality. The continuous, on-demand nature of content, often encrypted and originating from myriad global sources, renders traditional human-led pre-screening unfeasible. Models often involve self-regulation with government oversight, content classification, age ratings, grievance redressal mechanisms [such as India's Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021], and the power to remove specific unlawful content post-publication. These approaches recognize the impracticality of pre-censorship for the vast volume and dynamic nature of OTT content.

13. Although the spirit of regulating content for maintaining public order and morality through law is valid on the part of the State, however, the mechanism prescribed by the Ordinance is incapable of application to OTT platforms both legally and practically. The distinctions between exhibition of films by means of cinematograph and content on OTT platforms reflect fundamental differences in content creation, distribution, consumption patterns and the practicalities of regulation. Therefore, this Court cannot expand the scope of the Ordinance, designed for a different technological epoch and mode of consumption, to encompass a modern, dynamic digital medium. To do so would be an attempt to apply a legislative framework to a subject matter it was never intended to govern.

14. As noted in the preceding paragraphs, the Motion Pictures Ordinance of 1979 does not apply to content on Over-the-Top (OTT) platforms because these platforms did not exist when the Ordinance was promulgated. Even after the 18th Constitution Amendment, when provinces took over film censorship, none of the new provincial laws—like those in Sindh, Punjab, or Khyber Pakhtunkhwa—were updated to include censorship for digital or OTT content. The absence of specific language in these amendments

to regulate OTT platforms shows that the legislature did not intend these services to be covered by the existing censorship laws. Furthermore, a foundational principle of our constitutional jurisprudence, articulated in **Article 4(c)** of the Constitution, asserts that: -

“no person shall be compelled to do that which the law does not require him to do”.

It is a fundamental safeguard which ensures that state authority is exercised only within the bounds of the law. As the Ordinance was neither designed to regulate digital content on OTT platforms nor amended to meet these new exigencies, compelling its application through judicial order would impose an obligation not required by law.

15. The petitioners’ alternative prayer, seeking that if respondents do not restrain Over-the-Top platforms content, such unrestrained content be considered “certified” and allowed for public exhibition by the petitioners, is found to be untenable and contrary to established legal principles and public policy. This prayer is inextricably linked with petitioners’ further contention that the digital content accessed by the petitioners is not an import of goods and therefore not subject to the Import Policy Order 2022, particularly Serial No. 24 thereof. Firstly, as extensively discussed, the pre-censorship of the entirety of OTT platforms content is practically impossible at present due to its immense volume, continuous flow and global accessibility. To declare all such unrestrained content “certified” by default would create a regulatory vacuum, allowing potentially objectionable or unlawful content to be exhibited without any prior scrutiny or classification. This practical impossibility is further underscored by the technical limitations detailed by the learned counsel for PTA, who candidly submitted that while blocking access to entire platforms is within their authority, the granular pre-screening censorship of individual content items transmitted over secure protocols like https is not

practically achievable. This global reality, where most countries avoid blanket pre-censorship for OTT, reinforces the inapplicability of the Ordinance to this digital medium.

16. Secondly and more critically, allowing such a blanket “deemed certification” would imply State authorization for the public exhibition of any and all content available on OTT platforms. This is impermissible. When content is exhibited publicly, especially through a cinema, it carries an implicit State sanction or approval, signalling its suitability for a broader, often unsegregated audience. The State has a constitutional responsibility to protect public morality, decency, public order and other societal values, as enshrined in constitutional provisions pertaining to reasonable restrictions on freedom of expression¹. To authorize the public exhibition of content, the nature of which could be prohibited from public display under constitutional limitations, merely because it exists unregulated on digital platforms, would be a dereliction of this constitutional duty. It would effectively bypass the purpose of existing censorship laws and contradict the State’s own declared objectives for maintaining public order and morality. Content that might be unsuitable for public exhibition, for instance, due to obscenity, incitement to violence or material that undermines national security, would gain implicit State endorsement for widespread dissemination in public spaces, merely by virtue of its presence on an unregulated digital medium. This clearly differentiates private consumption (OTT) from public exhibition (cinema), where the latter entails a higher degree of societal impact and State responsibility.

17. As far as the prayer of the petitioners that digital content accessed digitally by the petitioners not being an import of goods is not subject to the Import Policy Order 2022 and Serial No.24 particularly, is concerned, the same appears to be a misdirected attempt to bypass the regulatory implications of public exhibition.

¹ Article 19 of the Constitution of the Islamic Republic of Pakistan, 1973.

While the digital nature of Over-the-Top content may indeed distinguish it from traditional “goods” in the physical import-export paradigm governed by the Import Policy Order 2022, particularly Serial No.24 which typically pertains to ban on import of cinematograph films, this distinction does not automatically exempt it from other forms of State regulation when it transitions from private consumption to public exhibition. The question of whether digital content constitutes “goods” for import purposes is primarily one for customs, trade, and taxation authorities. However, irrespective of its classification under import policies, once such content is sought to be publicly exhibited within the territorial limits of Pakistan via cinemas, it immediately engages the State’s power to regulate public displays for the maintenance of public order, morality and other societal interests. The nature of the medium of exhibition (cinema) produces distinct regulatory requirements under domestic law (including the Motion Pictures Ordinance, 1979 for cinematographs), which cannot be circumvented by arguing the digital origin or non-import status of the content itself. Therefore, even if the content is not deemed an “import of goods” in the traditional sense, its public exhibition in a cinema requires adherence to the laws governing public exhibition, which necessitates proper certification. The petitioners’ attempt to leverage a nuanced technical definition from trade law to gain a blanket waiver for content certification for public display is therefore untenable.

18. Adverting now to the contention of the learned counsel for the petitioners for an expansive interpretation of the term “cinematograph” as defined in Section 2(c) of the Ordinance, this argument, drawing parallels with the Indian Cinematograph Act, 1952 and citing an Indian citation in the case of *Entertaining Enterprises v. State of Tamil Nadu and Anr* (**AIR 1984 Mad 278**), aimed to bring modern technological advancements, specifically Over-the-Top platforms, within the ambit of the Ordinance. The underlying objective, as discerned by this Court, is to bolster the

petitioners' alternative prayer: that any film content available on OTT platforms in Pakistan, if not restrained by the Central Board of Film Censors, should be deemed certified for public exhibition by the petitioners in their cinemas. Despite the petitioners' advocacy for a broad interpretation of "cinematograph", it is crucial to note the absence of any illustrative instance, either from the Indian jurisdiction or elsewhere, where film content available on OTT platforms is automatically allowed for public exhibition in traditional cinemas simply by virtue of its digital presence. Even the cited Indian precedent does not support the leap to "deemed certification" for public cinematic display of unregulated digital content. The fundamental distinction between private consumption (inherent to OTT platforms) and public exhibition (requiring State oversight due to its societal impact) remains paramount. Therefore, an expansive interpretation of "cinematograph" alone, without corresponding regulatory mechanisms for public exhibition of OTT content, offers no practical or legal help to the petitioners' case for deemed certification.

19. Furthermore, once the meaning of an expression is provided in a statute, that interpretation tends to stick rigidly to that original understanding, even if times or circumstances evolve. Reliance in this regard is placed on the cases of Commissioner of Income Tax Legal Division, Lahore and others v. Khurshid Ahmad and others (PLD 2016 SC 545) and Supreme Court Bar Association of Pakistan through President and another v. Federation of Pakistan through Ministry of Interior Islamabad and others (PLD 2023 SC 42). In the latter case, the Supreme Court of Pakistan observed as under: -

"Statutes are designed to meet the fugitive exigencies of the hour. Amendment is easy as the exigencies change. In such cases, the meaning, once construed, tends legitimately to stereotype itself in the form first cast".

This jurisprudential principle supports the view that the legislative intent and the plain meaning of "cinematograph" at the time of the promulgation of the Ordinance cannot be stretched indefinitely to

accommodate unforeseen technological leaps like internet streaming. Reference is also made to the House of Lords judgment in British Amusement Catering Trades Association and another v. Westminster City Council ([1988] 1 All E R). In that case, it was held that: -

“exhibition of moving pictures” in the cinematograph Acts means a film show and does not include a video amusement game.”

The very nature of an OTT provider – not operating a physical network for traditional broadcasting but leveraging the internet to deliver services often free or at lower cost than traditional methods – highlights that it operates outside the conceptual framework of the Ordinance. The Ordinance’s focus on a “public exhibition” model, involving pre-censorship of physical film reels for collective viewing, is therefore conceptually and practically incongruous with the decentralized, on-demand, and often individualistic consumption inherent to OTT services.

20. Coming now to the petitioners’ assertion regarding discrimination while highlighting a perceived regulatory imbalance, the same does not withstand scrutiny as constituting discrimination in the strict legal sense under Article 25 of the Constitution. The essence of legal discrimination, particularly in the context of guarantee of equality as enshrined in Article 25 of the Constitution, applies where similarly circumstanced entities are treated differently under the same law, or where distinctions are drawn without reasonable justification among equals. Reliance is placed on the cases of “I.A. Sharwani and others v. Government of Pakistan through Secretary, Finance Division, Islamabad and others” (1991 SCMR 1041) and “Gul Zarif Khan and others v. Government of Khyber Pakhtunkhwa through Chief Secretary, Peshawar and others” (2025 SCMR 415). In the present case, cinematographs and OTT platforms are not “similarly circumstanced” entities under the purview of the Ordinance. A cinematograph involves a distinct mode of exhibition in a public setting, demanding physical infrastructure, controlled access and a regulatory framework built for a pre-digital

era. Conversely, OTT platforms operate as digital streaming services, delivering a vast, dynamic and globally sourced content library primarily for private consumption on diverse personal devices. The Ordinance was never designed nor enacted to regulate the latter. Therefore, the mere absence of its application to OTT platforms, which operate under a fundamentally different technological and consumption paradigm, does not constitute a discriminatory application of the same law. The State's challenge lies in a legislative vacuum for modern digital media, not in a discriminatory enforcement of an existing law on entities that are, in fact, distinct in their nature and mode of operation.

21. The case law cited by the learned counsel for the petitioners are distinguishable on facts and therefore not applicable to the present case.

22. For the foregoing reasons, the prayer seeking the application of the Motion Pictures Ordinance, 1979 to OTT platforms and the alternate prayer for deemed certification of unrestrained content, are not maintainable on legal and practical grounds. Both the petitions in hand are, therefore, dismissed.

Before parting with the judgment, this Court expresses its sincere gratitude to Mr. Zeeshan Zafar Hashmi, learned *amicus curiae*, for his invaluable assistance and insightful submissions, which greatly aided in the comprehensive analysis of the complex legal issues presented in this matter.

(RAHEEL KAMRAN)
JUDGE

Announced in open Court on _____

JUDGE

Approved for reporting.

JUDGE

